



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

APR 15 1991

DOT E-10516

1. S.A.F.E. Systems Inc., Decatur, Georgia, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation in commerce of the hazardous materials described in paragraph 3 below subject to the limitations and special requirements specified herein. This exemption authorizes the use of non-DOT specification cylinders, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on S.A.F.E. Systems Inc.'s application dated November 1, 1990, submitted in accordance with 49 CFR 107.103, additional information dated November 20 and December 20, 1990 and February 12 and March 12, 1991, and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquefied compressed gas (Bromotrifluoromethane), classed as a nonflammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Fire extinguisher.

5. REGULATION AFFECTED. 49 CFR 173.306 (c)(3).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification cylinder conforming with the requirements prescribed in 49 CFR 173.306(c) except the water capacity exceeds 35 cubic inches (§173.306(c)(3)). A total of 40,571 Model SUL-500 fire extinguishers having a water capacity of 64 cubic inches, conforming to design drawing No. F0020 Revn 3 submitted as part of the application, and on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). Each cylinder must be identified by UL test serial number to OHMEA prior to shipment. This exemption provides for the following:

a. The packaging authorized under this exemption must be manufactured prior to July 31, 1992, out of the existing inventory of raw materials at S.A.F.E. Systems Inc. as identified in its application.

b. For this exemption only, all requirements of 49 CFR 173.306(c) apply, except that §173.306(c)(3) is revised to read as follows

"The internal volume of each fire extinguisher authorized under this exemption may not exceed 64 cubic inches. The liquid portion of the gas plus any liquid or solid may not completely fill the container at 130° F."

c. The Halon 1301 and 1211 mixture may not exceed 32% Halon 1301.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Each packaging manufactured under this exemption must be marked "DOT-E 10516" in letters at least 0.25 inch high on a contrasting background.

c. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; the special packaging requirements of 49 CFR 173.3a for certain poisonous materials; all provisions of this exemption, and all other applicable requirements contained 49 CFR Parts 100-180.

d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

g. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. March 31, 1993.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 15 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA.